

Shiv Shankar Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 May 2024 · 2024:AHC:93822-DB · Writ - C No. 17811 of 2024 · **Writ disposed; petitioner relegated to District Magistrate under Works of Licensees Rules, status quo meantime.**

HEADNOTE

A landowner objecting to an electricity supply line over his land has a right under Clause 4.5(d) of the Electricity Supply Code, 2005. The District Magistrate (or other authorised officer) must resolve the objection under Clause 3 of the Works of Licensees Rules, 2006. The High Court disposed of the writ by directing the petitioner to apply to that forum, with status quo until the Magistrate decided.

FACTUAL SUMMARY

The petitioner alleged that the distribution licensee was laying a new power line for private respondent no. 7 and other village residents from a pole standing on his private property, and was erecting a new pole over his land. He opposed energising those connections from his line and any use of his land for the works. The private respondent contended that the petitioner was obstructing public work and that electricity was urgently required by village residents.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

landowner objection to supply line over private land

HOLDING

Clause 4.5(d) of the Electricity Supply Code, 2005 gives any person over whose land an electricity supply line may be laid a right to object. Clause 3 of the Works of Licensees Rules, 2006 then empowers the District Magistrate (or Commissioner of Police or other authorised officer) to resolve the objection so that land rights are not violated and public work is not unduly stalled. Without deciding the line's location or the objection on merits, the Court directed the petitioner to apply under Clause 3 to the District Magistrate within one week; the Magistrate was to hear all necessary parties, call for reports, and decide within three weeks of compliance, with status quo meantime. ¶ 5-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — EXACT LOCATION OF THE NEW POWER LINE AND WHETHER THE POLE STANDS ON THE PETITIONER'S PRIVATE LAND

Parties were at variance; left to the District Magistrate on the Clause 3 application. ¶ 2-6

NOT DECIDED — MERITS OF THE LANDOWNER'S OBJECTION VERSUS THE CLAIM OF URGENT PUBLIC WORK

¶ 5-6